

**Circular Memo.No.1728/Spl.B(3)/99-2, Genl.Admn. (Spl.B) Dept., dt.31.07.2000:
Recommendations / advice of Vigilance Commission to be given due consideration.**

**Subject Heading : Vigilance Commission - recommendation, advice to be given due
consideration; deviation to be avoided**

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Ref : 1. G.O.Ms.No.421, G.A.(SC.D) Dept., dt.03.08.93.

2. Memo.No.3148/SC.E/95-1, GAD dt.19.12.95.

The attention of all Departments of Secretariat, all Heads of Departments and all District Collectors is invited to the references cited.

2. Instances have come to the notice of the Government where, the Anti-Corruption Bureau have requested for sanction of prosecution of accused officers and the Vigilance Commission have also recommended prosecution, the concerned administrative department chose to sit in judgment on the recommendation of the Anti-Corruption Bureau and of the Vigilance Commission by examining the same in consultation with Law Department. In certain cases, the legality of the advice of the Vigilance Commission was also examined by the administrative departments.

3. In this connection, all the Departments are informed that the Vigilance Commission was conceptualized as an apex body to exercise general superintendence and control over vigilance matters in administration and ensuring probity in public life. Consultation with Vigilance Commission is essential to ensure that common standards are applied in deciding cases involving lack of probity and integrity in administration. The Vigilance Commission tenders independent and impartial advice to the disciplinary and other authorities in disciplinary cases involving vigilance angle at different stages of investigation, inquiry, appeal, review etc., with an open mind on the action to be taken against public servants on matters vitally affecting the morale of the public. Even though the advice of the Vigilance Commission is not binding on the Government, consultation with the Vigilance Commission is essential when the Government proposes to take disciplinary action against a public servant. It shall not be a mere formality. It shall be with a view to getting proper assistance in assessing the guilt or penalty proposed to be imposed. The Commission has an advisory role but in exercising its powers and functions, it has the same measure of independence and autonomy as the A.P. Public Service Commission. Further, the issues proposed by the Anti-Corruption Bureau are examined in detail by the Vigilance Commission before sending its recommendations to the Government.

4. In view of the above position, all Departments of Secretariat, all Heads of Departments and all District Collectors are requested to act upon the recommendations/ advice of the Vigilance Commissioner, giving due consideration to the advice of the Vigilance Commission while taking decisions. In cases where the Vigilance Commission have recommended for prosecution of public servants, it is requested that the recommendation of the Vigilance Commission shall not be further examined in the respective department or Law Department from the legal side, as the proposal of the Anti-Corruption Bureau and Vigilance Commission are already

scrutinised by their Legal Cells. It is further requested to take into consideration the instructions issued in the Memo second cited, in this regard.

5. All Departments of Secretariat, all Heads of Departments and all District Collectors are also requested to bring the above instructions to the notice of all subordinate offices and other institutions under their control, for strict compliance.